

Court No. - 2

Case :- WRIT - C No. - 64780 of 2009

Petitioner :- M/S Rathi Industries Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,A.N. Singh,A.S.G.I. (2009/2667),Pankaj Kr. Shukla

Hon'ble R.K. Agrawal,J.

Hon'ble Mrs. Jayashree Tiwari,J.

At the very outset learned counsel for the petitioner submits that in the similar set of fact, this Court has intervened and granted interim protection. Copy of the order dated 11.10.2008 passed in civil misc. writ petition no. 55099 of 2009 is shown to the Court.

In view of above, connect this petition along with the Writ Petition referred above. In the meantime, respondents may file counter affidavit.

Following the reasons/order of this Court passed in the writ petition referred above, we direct that till the next date of listing, the petitioner will not be required to deposit additional security as demanded from him by letter dated 31.10.2009.

Order Date :- 1.12.2009

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Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

List in the week commencing 22.2.2010.

Interim order to continue till then.

Order Date :- 4.2.2010

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Court No. - 3

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Respondent :- State Of U.P. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- C.S.C.,A.N. Singh,A.S.G.I.
(2009/2667),Pankaj Kr. Shukla

Hon'ble Pritinker Diwaker,J.

Hon'ble Saral Srivastava,J.

Heard Sri B.C. Rai, learned counsel for the petitioner and Sri Nipendra Mishra, learned Counsel for the Electricity Department.

This petition relates to the payment of additional security for supply of electricity with the warning that if the payment of security is not made within the stipulated period, appropriate action would be taken in accordance with law. The petitioner has also challenged the provisions contained in clause (1) of Para 4.20 of the Electricity Supply Code, 2005, insofar as it provides 'as and when the distribution licence provides a choice to consumer to opt' being ultra vires the provisions of sub-section (5) of Section 47 of the Electricity Act, 2003.

Learned counsel for the petitioner fairly submits that number of identical matters have already been dismissed by this Court vide judgment dated 21.3.2017 passed in lead case ***Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others)***. He submits that said judgment is already subject matter before the Apex Court and as such in the present petition also similar order can be passed.

Considering the fair submission of learned counsel for the petitioner, the present petition is also dismissed in terms of order dated 21.3.2017 passed by this Court in a bunch of cases lead case Writ-C No.30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) vs. State of U.P. and 3 others).

The writ petition is, accordingly, **dismissed**.

Order Date :- 20.11.2018

Israr/Ankita